

1.

CASE #	CASE NAME	HEARING NAME
CVRI2502206	WALKER vs FAN	MOTION FOR ORDER AUTHORIZING PLAINTIFF TO RECORD NOTICE OF PENDENCY OF ACTION WITH THE RIVERSIDE COUNTY RECORDER

Tentative Ruling:

A lis pendens is a recorded instrument also known as a Notice of Pendency of Action, which is recorded in the office of the county recorder where land is located, that gives constructive notice of a pending lawsuit affecting title to described real property. Weil & Brown, *Cal. Prac. Guide, Civ. Proc. Before Trial* (TRG 2013) Ch. 9, Part I: Law and Motion, §9:421, p. 9(l)-164. Anyone who acquires an interest in the described real property (purchaser, mortgagee, etc.) takes that interest subject to any judgment that may be entered in the lawsuit. The practical effect is to cloud the property's title and prevent its transfer until the litigation is resolved or the lis pendens is expunged or released. *Malcolm v. Sup. Ct. (Green)* (1981) 29 Cal.3d 518, 523; *Bishop Creek Lodge v. Scira* (1996) 46 Cal.App.4th 1721, 1733.

There are some actions in which recording a lis pendens is required by statute, including: actions to quiet title (C.C.P. § 761.010). Recordation of a lis pendens is permitted in any action by a "claimant" who has a "real property claim." C.C.P. §405.1.

A judge of the court in which an action that includes a real property claim pending may, upon request of a party thereto, approve a notice of pendency of action. A notice of pendency of action shall not be recorded unless (a) it has been signed by the attorney of record, (b) it is signed by a party acting in propria persona and approved by a judge as provided in this section, or (c) the action is subject to Section 405.6. (CCP 405.21)

Motion to record a Notice of Pendency of Action is granted. Moving party to submit an order for the Court's signature. Moving party to give notice of ruling.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502533	STERLING vs RODRIGUEZ	MOTION TO COMPEL

Tentative Ruling:

This motion to Compel is unopposed. Accordingly, the motion is granted in all respects. Proposed order submitted to the Court has been signed and ordered filed. Moving party to give notice of ruling within 10 days.